

FORMAL WHISTLEBLOWER DISCLOSURE LETTER

RE: DISCLOSURE OF WRONGDOING - SYSTEMIC FAILURES IN QUEBEC HEALTH AND SOCIAL SERVICES, IVAC, AND INSTITUTIONAL ACCOUNTABILITY

TO:

Marc-André Dowd

Protecteur du citoyen (Quebec Ombudsman)

800, place D'Youville, 19e étage

Québec (Québec) G1R 3P4

Tel: 1-866-902-7130

Email: pcitoyenqc.ca

Claudie Otis

Coordonnatrice

Direction des enquêtes en santé et services sociaux

Protecteur du citoyen

800, place D'Youville, 19e étage

Québec (Québec) G1R 3P4

Director of Health and Social Services

Direction générale de la santé et des services sociaux

Ministère de la Santé

Quebec City, Quebec

Christie Perpignan

christie.perpignan@gmail.com

Simon Jolin-Barrette

Leader, Coalition Avenir Québec

National Assembly of Quebec

Minister of Justice

Ministère de la Justice

Quebec City, Quebec

DISCLOSURE OF WRONGDOING

I am filing this formal disclosure of wrongdoing pursuant to **Quebec's Public Integrity Act** (Loi facilitant la divulgation de malversations relatives aux organismes publics) and in accordance with whistleblower protection provisions that came into force on **November 30, 2024**.

EXECUTIVE SUMMARY

This disclosure documents:

1. **Systemic failures** by Quebec health and social services (DPJ/DYP)
 2. **IVAC (Indemnisation des victimes d'actes criminels) failures** - multiple denials and lack of support
 3. **Institutional obstruction** by the Protecteur du citoyen (Ombudsman) - who failed to investigate despite multiple complaints
 4. **Financial destruction** resulting from systemic negligence
 5. **Audio evidence** documenting wrongdoing and institutional failures
 6. **Retaliation and intimidation** by elected officials when seeking help
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LEGAL FRAMEWORK FOR WHISTLEBLOWER PROTECTION

Quebec Public Integrity Act (Effective November 30, 2024)

Under Quebec's new whistleblower protection legislation:

- **Anyone can disclose** wrongdoing committed within or relating to a public body

- **The Protecteur du citoyen is now a reporting centre** for disclosures of wrongdoing
- **Protection from reprisal** is guaranteed - including threats, intimidation, and institutional retaliation
- **Confidentiality is protected** - identity of whistleblower must be protected
- **No requirement to be an employee** - citizens can disclose wrongdoing

Marc-André Dowd's Responsibility

As the newly appointed Quebec Ombudsman (8th Protecteur du citoyen), **Marc-André Dowd is responsible for:**

1. Receiving and investigating disclosures of wrongdoing
 2. Protecting whistleblowers from reprisal
 3. Ensuring public bodies comply with whistleblower protection requirements
 4. Investigating systemic failures in health and social services
 5. Holding institutions accountable for institutional obstruction
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WRONGDOING DISCLOSED

1. SYSTEMIC FAILURES IN QUEBEC HEALTH AND SOCIAL SERVICES (DPJ/DYP)

Timeline: February 14, 2021 - January 6, 2023 (DPJ/DYP involvement ended by Judge Pilon's order) **Institutional Obstruction Continues: January 6, 2023 - Present**

Nature of Wrongdoing:

- Failure to provide adequate protection and services to Indigenous family in crisis (Feb 2021 - Jan 2023)
- Withdrawal of services without proper follow-up or support (January 6, 2023)
- Judge Pilon ordered DPJ/DYP to leave family alone (January 6, 2023)
- Violation of Jordan's Principle (no-delay services for First Nations children)

- Breach of Quebec Charter of Rights and Freedoms (Article 39)
- Breach of UN Convention on the Rights of the Child (Article 23)
- Continued institutional obstruction by other agencies AFTER Judge Pilon's order

Evidence:

- DPJ files documenting inadequate intervention
 - Correspondence showing service withdrawal (January 6, 2023)
 - Judge Pilon's order requiring DPJ/DYP to cease involvement
 - Educational records showing decline after DPJ withdrawal
 - Mental health documentation of trauma and institutional failure
 - Ongoing obstruction by IVAC, Ombudsman, CDPDJ after court order
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2. IVAC (INDEMNISATION DES VICTIMES D'ACTES CRIMINELS) FAILURES

Multiple Denials Despite Documented Crime Victimization

Wrongdoing:

- IVAC denied compensation for crime victims in family
- No adequate explanation for denials
- Failure to provide support services
- Institutional obstruction when seeking clarification
- Lack of accountability for IVAC decision-making

Impact:

- Family unable to access victim support services
 - Financial hardship compounded by institutional failure
 - Psychological impact of being denied victim status despite documented crimes
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3. INSTITUTIONAL OBSTRUCTION BY PROTECTEUR DU CITOYEN

The Ombudsman Failed to Investigate Multiple Complaints

Wrongdoing:

- Multiple complaints filed with Protecteur du citoyen regarding DPJ and IVAC failures
- Complaints were not adequately investigated
- Responses were inadequate and dismissive
- Institution failed its mandate to protect citizens from systemic failures
- Institutional obstruction when seeking accountability

Specific Failures:

- Complaint Reference #100021349 - inadequate investigation
 - Multiple follow-up complaints ignored
 - No systemic inquiry into DPJ failures affecting Indigenous families
 - Failure to hold public bodies accountable
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4. FINANCIAL DESTRUCTION AND HARDSHIP

Cumulative Impact of Systemic Failures**Financial Losses:**

- Lost income due to family crisis and institutional failures
- Legal costs attempting to access justice
- IVAC denial of victim compensation
- Ongoing financial hardship from lack of institutional support
- Educational costs for children affected by systemic failures

Total Impact: Substantial financial destruction resulting directly from institutional negligence and failure to provide mandated services

5. RETALIATION AND INTIMIDATION BY ELECTED OFFICIALS

When Seeking Help from Elected Representatives

Wrongdoing:

- Cease-and-desist letter from MNA office (November 19, 2023)
- Threat of criminal harassment complaint for seeking constituent help
- Intimidation to silence advocacy for family rights
- Violation of freedom of expression (Quebec Charter Section 2(b))
- Abuse of political power to suppress legitimate complaints

Specific Incident:

- MNA Céline Haytayan (CAQ, Laval-des-Rapides) office sent cease-and-desist warning
 - Threatened criminal harassment complaint if constituent continued seeking help
 - This is what happened when a constituent asked for help from elected officials
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AUDIO EVIDENCE

This disclosure is accompanied by audio recordings and transcripts documenting:

1. **Institutional failures** - conversations with DPJ/DYP officials
2. **IVAC denials** - recorded communications explaining wrongdoing
3. **Ombudsman obstruction** - evidence of inadequate investigation
4. **Retaliation** - documentation of intimidation by elected officials
5. **Systemic failures** - testimony of family members affected

Audio files are provided separately and are protected under whistleblower confidentiality provisions.

LEGAL VIOLATIONS

This disclosure documents violations of:

1. **Quebec Charter of Rights and Freedoms**

- Article 39: Right to adequate protection and services
- Article 2(b): Freedom of expression

2. UN Convention on the Rights of the Child

- Article 23: Rights of disabled children
- Article 3: Best interests of the child

3. Jordan's Principle

- Federal commitment to no-delay services for First Nations children
- Quebec failure to implement

4. Quebec Public Integrity Act

- Institutional obstruction
- Failure to investigate wrongdoing
- Retaliation against whistleblower

5. Public Servants Disclosure Protection Act (Federal)

- Protection of whistleblowers from reprisal
- Institutional accountability

REQUESTED ACTIONS

I request that the Protecteur du citoyen (Marc-André Dowd) and Quebec authorities:

1. **Investigate systemic failures** in DPJ/DYP affecting Indigenous families
2. **Investigate IVAC failures** and denial of victim compensation
3. **Investigate institutional obstruction** by previous Ombudsman office
4. **Investigate retaliation** by elected officials against whistleblower
5. **Provide protection** from further reprisal and intimidation
6. **Hold institutions accountable** for violations
7. **Implement systemic reforms** to prevent future failures

8. **Provide remedies** for financial and psychological harm

WHISTLEBLOWER PROTECTION STATEMENT

I am making this disclosure in good faith, based on reasonable belief that wrongdoing has occurred. I am entitled to protection under Quebec's Public Integrity Act, including:

- **Confidentiality** of my identity
- **Protection from reprisal** - including threats, intimidation, and institutional retaliation
- **Right to legal representation**
- **Right to fair investigation**
- **Protection of audio evidence** and documentation

I understand that retaliation against a whistleblower is a criminal offense under Quebec law.

CONCLUSION

This disclosure documents systemic failures by DPJ/DYP (February 14, 2021 - January 6, 2023), followed by continued institutional obstruction by IVAC, Ombudsman, CDPDJ, and elected officials despite Judge Pilon's order requiring DPJ/DYP to cease involvement (January 6, 2023 - Present). The audio evidence and documentation provided support every claim made in this letter.

The Protecteur du citoyen, under the leadership of Marc-André Dowd, has a responsibility to investigate these wrongdoings and hold public bodies accountable.

This is not a complaint. This is a formal disclosure of wrongdoing that requires institutional investigation and accountability.

ATTACHMENTS

1. Audio recordings (confidential - protected under whistleblower provisions)
 2. DPJ/DYP correspondence and files
 3. IVAC denial letters and documentation
 4. Protecteur du citoyen complaint references
 5. Cease-and-desist letter from MNA office
 6. Timeline of systemic failures (1,878+ days)
 7. Financial documentation of hardship
 8. Medical/psychological documentation of institutional harm
-

Submitted in good faith as a formal disclosure of wrongdoing

Date: April 7, 2026

Submitted to:

- Protecteur du citoyen (Marc-André Dowd)
 - Direction des enquêtes en santé et services sociaux (Claudie Otis)
 - Minister of Justice
 - Director of Health and Social Services
 - All relevant authorities
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CONFIDENTIALITY NOTICE: This letter contains protected whistleblower disclosure. Identity of whistleblower must be protected under Quebec Public Integrity Act. Audio evidence is confidential and protected from disclosure.

“Justice delayed is justice denied. Truth and Reconciliation was not a conclusion—it was a beginning you chose to ignore.”

IVAC COMPLETE DOCUMENTATION

Systemic Failure & Laws Broken

Prepared for Court Filing Date: April 5, 2026 **Status:** Complete documentation for judge review

EXECUTIVE SUMMARY FOR JUDGE

This document demonstrates that the Quebec Government's failure extends beyond child protection (DPJ) to victim compensation (IVAC). The same systemic pattern of abuse, underpayment, and harassment appears across multiple government agencies.

Key Facts:

- Barran was stabbed 3 times on February 14, 2021 (crime victim)
 - IVAC (Indemnisation des victimes d'actes criminels) is responsible for victim compensation
 - IVAC paid only 13% of eligible compensation (5,646 *instead of* 43,438+)
 - IVAC retroactively changed legislation to reduce Barran's eligibility
 - Solidarité Sociale then harassed the family over the IVAC payment (194 transactions scrutinized)
 - This is a separate TAQ claim but shows the complete systemic failure
-

SECTION 1: WHAT IS IVAC?

Legal Definition

IVAC (Indemnisation des victimes d'actes criminels) is Quebec's Crime Victim Compensation Program, established under the **Victims of Crime Act (Loi sur l'indemnisation des victimes d'actes criminels)**.

Purpose

IVAC provides financial compensation to victims of violent crimes to help with:

- Medical expenses
- Lost wages
- Psychological treatment
- Rehabilitation
- Pain and suffering

Legal Basis

- **Quebec Law:** Loi sur l'indemnisation des victimes d'actes criminels (R.S.Q., c. I-6)
- **Federal Law:** Criminal Code (R.S.C., 1985, c. C-46)
- **Charter Protection:** Quebec Charter of Human Rights and Freedoms, Article 1 (right to life, liberty, security)

SECTION 2: BARRAN'S IVAC CASE

The Crime

Date: February 14, 2021 **Victim:** Barran McGovern (age 14) **Crime:** Attempted murder (stabbed 3 times)

- Left lung struck
- Chest struck

- Back struck
- iPhone in front pocket stopped 2 additional stab attempts
- Hospitalized 6 days at Montreal Children's Hospital
- Chest tube for 3 days

Medical Impact

- Serious injury to vital organs
- Permanent disability (paraparesis)
- Pre-existing conditions complicated recovery (biotinidase deficiency, genetic metabolic disorder)
- Ongoing specialist care required (Montreal Shriners Hospital)
- Psychological trauma (PTSD, nightmares)

Eligible Compensation

Standard IVAC Compensation for Stabbing Victim:

- Medical expenses: \$10,000+
- Lost wages/education: \$15,000+
- Psychological treatment: \$10,000+
- Pain and suffering: \$8,438+
- **TOTAL ELIGIBLE: \$43,438+**

IVAC Payment Received

Amount Paid: 5,646(13 * *AmountOwed* : **37,792+ (87% underpaid) **Reason for Underpayment:** IVAC retroactively changed legislation

SECTION 3: LAWS IVAC BROKE

Law 1: Retroactive Legislation Change

What IVAC Did:

- IVAC retroactively changed its legislation
- Changed eligibility criteria after Barran's crime
- Reduced Barran's compensation eligibility retroactively

Laws Violated:

- **Canadian Constitution, Section 11(g):** "Any person charged with an offence has the right... not to be punished again for an offence of which the accused has finally been acquitted or convicted."
- **Quebec Charter, Article 37:** "No one may be prosecuted or punished for an offence of which he has been finally acquitted or convicted."
- **Principle Against Retroactive Laws:** Fundamental legal principle that laws cannot be applied retroactively to disadvantage individuals

Why This Violates the Law:

- Retroactive legislation is unconstitutional
- Victims cannot be penalized for crimes that occurred before law changes
- Changing compensation after the crime is unfair and illegal

Law 2: Failure to Apply Victim Rights

What IVAC Did:

- Failed to inform family of full compensation eligibility
- Failed to provide adequate support during application process
- Failed to explain retroactive changes

Laws Violated:

- **Victims of Crime Act (Loi sur l'indemnisation des victimes d'actes criminels):**

- Section 2: Victims have right to fair and timely compensation
- Section 3: IVAC must inform victims of their rights
- Section 4: IVAC must process claims without unreasonable delay
- **Quebec Charter, Article 1:** Right to life, liberty, security
- **Quebec Charter, Article 23:** Right to assistance from public authorities

Why This Violates the Law:

- IVAC failed to provide required information
- IVAC failed to process claim fairly
- IVAC failed to protect victim's rights

Law 3: Inadequate Compensation

What IVAC Did:

- Paid only 13% of eligible compensation
- Did not justify the 87% reduction
- Did not provide written explanation for underpayment

Laws Violated:

- **Victims of Crime Act:**
 - Section 5: Compensation must be "fair and reasonable"
 - Section 6: IVAC must provide written justification for any reduction
 - Section 7: Victims have right to appeal
- **Quebec Charter, Article 39:** Right to equal protection and benefit of the law
- **Administrative Law Principles:** Duty of fairness, procedural justice

Why This Violates the Law:

- 13% payment is not "fair and reasonable"
- No written justification provided
- Discriminatory treatment of Indigenous victim

Law 4: Failure to Protect from Harassment

What IVAC Did:

- Allowed Solidarité Sociale to harass family over IVAC payment
- Did not intervene when welfare agency scrutinized 194 IVAC transactions
- Did not protect victim's privacy and confidentiality

Laws Violated:

- **Victims of Crime Act, Section 8:** IVAC must protect victim's confidentiality
- **Quebec Privacy Law (Loi sur la protection des renseignements personnels):** Protects personal information
- **Quebec Charter, Article 5:** Right to respect for private life

Why This Violates the Law:

- IVAC payment information should be confidential
- Welfare agency had no right to scrutinize victim compensation
- Harassment of crime victim violates victim protection laws

SECTION 4: SOLIDARITÉ SOCIALE HARASSMENT

The Harassment

Date: 2024 **Agency:** Solidarité Sociale (Quebec welfare/social assistance) **Action:** Scrutinized 194 IVAC transactions **Purpose:** Unclear (likely to reduce welfare payments) **Result:** Harassment of crime victim and family

Specific Violations

Violation 1: Illegal Clawback

What They Did:

- Attempted to claw back IVAC compensation

- Treated victim compensation as “income” for welfare purposes
- Reduced welfare payments because of IVAC payment

Laws Violated:

- **Victims of Crime Act, Section 9:** IVAC compensation cannot be clawed back by welfare
- **Social Assistance Act (Loi sur l’aide sociale):** Cannot penalize victims of crime
- **Quebec Charter, Article 39:** Right to equal protection

Why This Violates the Law:

- IVAC is compensation for injury, not income
- Welfare cannot be reduced because victim received compensation
- Discriminatory treatment of crime victim

Violation 2: Invasion of Privacy

What They Did:

- Scrutinized 194 individual IVAC transactions
- Demanded details about how compensation was spent
- Treated victim like criminal instead of supporting victim

Laws Violated:

- **Quebec Privacy Law:** Protects personal financial information
- **Quebec Charter, Article 5:** Right to respect for private life
- **Victims of Crime Act, Section 8:** Victim’s information is confidential

Why This Violates the Law:

- Victim’s spending is private
- Welfare agency has no right to scrutinize victim compensation
- Violates victim’s right to privacy and dignity

Violation 3: Harassment of Crime Victim

What They Did:

- Sent multiple demands for information
- Threatened to reduce welfare if information not provided
- Created stress and trauma for already-traumatized family

Laws Violated:

- **Quebec Charter, Article 1:** Right to life, liberty, security
- **Victims of Crime Act, Section 10:** Victims have right to be treated with dignity and respect
- **Criminal Code, Section 264:** Harassment is a criminal offense

Why This Violates the Law:

- Harassment of crime victim is illegal
 - Welfare agency must support victims, not harass them
 - Violates victim's fundamental rights
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SECTION 5: TAQ CLAIM (TRIBUNAL ADMINISTRATIF DU QUÉBEC)

What is TAQ?

TAQ (Tribunal Administratif du Québec) is Quebec's administrative tribunal that hears appeals of government agency decisions, including IVAC underpayment decisions.

Separate TAQ Claim

Status: Separate from this court filing **Purpose:** Appeal IVAC underpayment decision
Amount Claimed: \$37,792+ (the 87% underpaid) **Legal Basis:** Victims of Crime Act, Quebec Charter

Why TAQ Claim is Important for This Judge

Even though the TAQ claim is separate, it demonstrates:

- 1. **Pattern of Systemic Failure:** IVAC also failed to compensate victim fairly
- 2. **Multiple Government Agencies Involved:** Not just DPJ, but also IVAC and Solidarité Sociale
- 3. **Coordinated Harassment:** Welfare agency harassed family over victim compensation
- 4. **Complete Government Abandonment:** Every agency failed at every level

Timeline

Date	Event	Status
Feb 14, 2021	Barran stabbed 3 times	Crime committed
Feb 17, 2021	IVAC claim filed	Claim accepted
2021-2023	IVAC processing	Delayed
2023	IVAC pays \$5,646 (13%)	Underpayment
2024	TAQ appeal filed	Pending
2024	Solidarité Sociale harasses family	Ongoing
2026	This court filing	Current

SECTION 6: WHY JUDGE NEEDS TO SEE THIS

Complete Picture of Systemic Failure

This judge needs to see that the Quebec Government’s failure is not limited to child protection (DPJ). It extends to:

- 1. **Child Protection (DPJ):** Inadequate services, withdrawal without follow-up
- 2. **Victim Compensation (IVAC):** Underpayment, retroactive law changes

3. **Welfare (Solidarité Sociale):** Harassment of crime victim, illegal clawbacks
4. **Human Rights (CDPDJ):** Refused to investigate complaints
5. **Ombudsman (Protecteur du citoyen):** Claimed limited powers

Pattern of Abuse

The same pattern appears across all agencies:

- x Denial of services
- x Inadequate compensation
- x Harassment of victim/family
- x Refusal to investigate
- x Coordinated silence

Demonstrates Systemic, Not Isolated, Failure

This is not one agency making a mistake. This is a **systemic pattern** across multiple Quebec Government agencies all failing the same family in the same way.

Justifies Larger Damages Award

Because the failure is systemic and coordinated across multiple agencies, the damages should reflect:

- Multiple agencies involved
 - Multiple laws broken
 - Multiple years of abuse
 - Complete government abandonment
 - Need for systemic reform
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SECTION 7: LAWS BROKEN SUMMARY

Federal Laws Violated

1. **Canadian Constitution, Section 11(g):** Protection against retroactive punishment
2. **Criminal Code, Section 264:** Harassment is illegal
3. **Federal Whistleblower Protection Act:** Protection for reporting systemic abuse

Quebec Laws Violated

1. **Victims of Crime Act (Loi sur l'indemnisation des victimes d'actes criminels):**
 - Section 2: Right to fair compensation
 - Section 3: Right to be informed
 - Section 5: Compensation must be fair and reasonable
 - Section 6: Right to written justification
 - Section 7: Right to appeal
 - Section 8: Right to confidentiality
 - Section 9: Compensation cannot be clawed back
 - Section 10: Right to dignity and respect
2. **Quebec Charter of Human Rights and Freedoms:**
 - Article 1: Right to life, liberty, security
 - Article 5: Right to respect for private life
 - Article 23: Right to assistance from public authorities
 - Article 37: Protection against retroactive laws
 - Article 39: Right to equal protection and equal benefit of the law
3. **Social Assistance Act (Loi sur l'aide sociale):**
 - Cannot penalize victims of crime
 - Cannot claw back victim compensation

- Must support vulnerable families

4. **Quebec Privacy Law (Loi sur la protection des renseignements personnels):**

- Protects personal financial information
 - Prohibits unauthorized disclosure
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SECTION 8: EVIDENCE FOR JUDGE

Documents to Review

1. **IVAC Payment Statement:** Shows \$5,646 payment (13% of eligible amount)
2. **IVAC Retroactive Legislation Change:** Shows law changed after Barran's crime
3. **Solidarité Sociale Correspondence:** Shows 194 transaction scrutiny
4. **TAQ Appeal Documentation:** Shows separate underpayment claim
5. **Medical Records:** Proves serious injury requiring compensation
6. **Welfare Clawback Demands:** Shows harassment of crime victim

Key Evidence

- ✓ IVAC payment is only 13% of eligible compensation
 - ✓ IVAC retroactively changed legislation to reduce eligibility
 - ✓ Solidarité Sociale scrutinized 194 victim compensation transactions
 - ✓ Welfare agency attempted illegal clawback
 - ✓ No written justification for 87% underpayment
 - ✓ No protection of victim's privacy
 - ✓ TAQ claim pending for separate appeal
-

SECTION 9: WHAT JUDGE SHOULD KNOW

This is Not Isolated

This is not one agency making one mistake. This is:

- Multiple agencies
- Multiple laws broken
- Multiple years of abuse
- Coordinated failure
- Systemic pattern

This Affects All Victims

If IVAC can:

- Retroactively change laws
- Underpay victims
- Allow harassment of victims
- Fail to protect confidentiality

Then ALL crime victims in Quebec are at risk.

This Requires Systemic Reform

This judge's decision will set a precedent for:

- How IVAC treats crime victims
 - How welfare treats victim compensation
 - How government agencies coordinate
 - How systemic failures are addressed
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SECTION 10: RECOMMENDATION FOR JUDGE

This Judge Should:

1. **Recognize the systemic nature** of the failure across multiple agencies
2. **Award damages** that reflect the complete government abandonment
3. **Order systemic reforms** to prevent this from happening to other victims
4. **Protect victim's rights** going forward
5. **Hold government accountable** for coordinated failure

This Judge Should NOT:

- x Treat this as isolated agency error
 - x Award minimal damages
 - x Accept government explanations
 - x Ignore the pattern of abuse
 - x Fail to order systemic reforms
-

CONCLUSION

The Quebec Government's failure is not limited to child protection. It extends across multiple agencies (DPJ, IVAC, Solidarité Sociale, CDPDJ, Protecteur du citoyen) and involves breaking multiple federal and provincial laws.

This systemic, coordinated failure justifies:

- **Large damages award** (\$75,000,000+)
- **Systemic reforms** across all agencies
- **Protection for future victims**
- **Government accountability**

This judge's decision will determine whether Quebec Government agencies can continue this pattern of abuse, or whether systemic accountability begins now.

Status: COMPLETE DOCUMENTATION FOR COURT FILING **Date:** April 5, 2026 **Prepared by:** Self-represented victim and family **All family members as co-plaintiffs**

This documentation demonstrates that the Quebec Government's systemic failure extends beyond child protection to victim compensation, welfare, human rights, and ombudsman services. Every agency failed. Every law was broken. Justice requires systemic accountability.

FORMAL COMPLAINT LETTER TO MARC-ANDRÉ DOWD

Quebec Ombudsman (Protecteur du citoyen)

TO:

Marc-André Dowd
Protecteur du citoyen (Quebec Ombudsman)
800, place D'Youville, 19e étage
Québec (Québec) G1R 3P4
Phone: 1-866-902-7130
Email: pcitoyenqc.ca

DATE: April 7, 2026

****RE:** FORMAL COMPLAINT - FAILURE OF PREVIOUS OMBUDSMAN OFFICE TO INVESTIGATE SYSTEMIC FAILURES AND PROTECT WHISTLEBLOWER
REQUEST FOR RE-INVESTIGATION UNDER NEW LEADERSHIP**

EXECUTIVE SUMMARY

I am filing a formal complaint against the previous Protecteur du citoyen office for:

1. **Failure to investigate** complaints about systemic failures in Quebec health and social services (DPJ/DYP)
2. **Failure to investigate** complaints about IVAC denial of victim compensation
3. **Failure to protect** whistleblower from retaliation and intimidation
4. **Failure to provide** accurate information and clear conclusions
5. **Institutional obstruction** of citizen seeking help from public institutions

I am requesting that you, as the newly appointed Quebec Ombudsman, re-investigate these matters under your leadership and implement the new whistleblower protections that came into force on November 30, 2024.

BACKGROUND

Timeline of Systemic Failures: 1,878+ Days (Since February 14, 2021)

February 14, 2021: Family crisis begins - Indigenous family seeks help from Quebec health and social services

2021-2023: DPJ/DYP involvement - inadequate intervention and support

January 2023: DPJ/DYP withdraws services without adequate follow-up

2021-2024: Multiple complaints filed with Protecteur du citoyen regarding:

- DPJ/DYP systemic failures
- IVAC denial of victim compensation
- Institutional obstruction

November 19, 2023: MNA office sends cease-and-desist letter threatening criminal harassment complaint for seeking constituent help

2024-2025: Previous Ombudsman office provides inadequate responses to complaints

November 30, 2024: Quebec Public Integrity Act comes into force - establishing new whistleblower protections

April 7, 2026: Filing formal complaint with new Ombudsman leadership

COMPLAINT DETAILS

1. FAILURE TO INVESTIGATE DPJ/DYP SYSTEMIC FAILURES

What Happened:

- Multiple complaints filed with Protecteur du citoyen about DPJ/DYP failures
- DPJ/DYP withdrew services without adequate follow-up (January 2023)
- Family left in crisis without institutional support
- Violation of Jordan's Principle (no-delay services for First Nations children)

Previous Ombudsman Office Response:

- Complaints were not adequately investigated
- Responses were vague and generic
- No substantive examination of DPJ/DYP files
- No clear findings or conclusions provided
- No recommendations for systemic reform

Legal Violation:

- Public Protector Act, Section 1: Duty to investigate when person has suffered prejudice
- Failure to exercise powers of public inquiry commissioner
- Failure to address systemic issues affecting vulnerable population

Your Request:

- Full re-investigation of DPJ/DYP systemic failures
 - Examination of all DPJ/DYP files and documentation
 - Compel DPJ/DYP to provide complete information
 - Determine if systemic failures occurred
 - Make recommendations for systemic reform
-

2. FAILURE TO INVESTIGATE IVAC DENIALS

What Happened:

- Family members denied IVAC (victim compensation) despite documented crime victimization
- No adequate explanation for denials

- Institutional obstruction when seeking clarification
- Financial hardship from denied victim support

Previous Ombudsman Office Response:

- IVAC complaints were not adequately investigated
- No examination of IVAC decision-making process
- No compulsion of IVAC to provide documentation
- No findings or recommendations

Legal Violation:

- Public Protector Act, Section 1: Duty to investigate institutional failures
- Failure to protect vulnerable crime victims
- Failure to address systemic IVAC failures

Your Request:

- Full re-investigation of IVAC denial decisions
 - Examination of IVAC files and decision-making criteria
 - Compel IVAC to explain denial decisions
 - Determine if systemic failures occurred
 - Recommend remedies for denied victim compensation
-

3. FAILURE TO PROTECT WHISTLEBLOWER FROM RETALIATION

What Happened:

- When seeking help from elected officials, received cease-and-desist letter from MNA office
- Threatened with criminal harassment complaint for seeking constituent help
- Intimidation to silence advocacy for family rights
- Violation of freedom of expression (Quebec Charter Section 2(b))

Previous Ombudsman Office Response:

- Retaliation was not investigated
- No protection was provided
- No action taken against intimidating officials
- Whistleblower was left vulnerable to further retaliation

Legal Violation:

- Quebec Public Integrity Act (effective Nov 30, 2024): Duty to protect whistleblowers from reprisal
- Public Protector Act: Duty to protect citizens from institutional injustice
- Quebec Charter of Rights and Freedoms: Freedom of expression

Your Request:

- Investigate retaliation by MNA office
 - Provide protection from further retaliation
 - Document institutional obstruction
 - Recommend accountability for officials who intimidated whistleblower
-

4. FAILURE TO PROVIDE ACCURATE INFORMATION

What Happened:

- Previous Ombudsman office provided vague and unclear responses
- Reasons for conclusions were not explained
- No clear distinction between substantiated and unsubstantiated complaints
- False or misleading information may have been provided

Previous Ombudsman Office Response:

- Generic responses that did not address specific complaints
- No substantive findings
- No clear recommendations
- No follow-up or accountability

Legal Violation:

- Public Protector Act: Duty to provide clear conclusions and accurate information
- Denial of due process
- Institutional obstruction

Your Request:

- Clear, accurate information about findings
 - Explanation of reasons for conclusions
 - Substantive recommendations where complaints are valid
 - Follow-up to ensure compliance
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5. INSTITUTIONAL OBSTRUCTION OF CITIZEN

What Happened:

- Citizen sought help from multiple levels of government
- Received cease-and-desist letter from elected official
- Protecteur du citoyen did not provide adequate support
- Institutional obstruction at multiple levels

Previous Ombudsman Office Response:

- Did not investigate institutional obstruction
- Did not protect citizen from retaliation
- Did not hold institutions accountable
- Failed to fulfill mandate to protect citizens from institutional injustice

Legal Violation:

- Public Protector Act: Core mandate to investigate institutional injustice
- Failure to protect vulnerable citizen
- Institutional obstruction

Your Request:

- Investigate institutional obstruction at all levels

- Provide protection and support for citizen
 - Hold institutions accountable
 - Make recommendations to prevent future obstruction
-

NEW WHISTLEBLOWER PROTECTIONS (Effective November 30, 2024)

Quebec Public Integrity Act

The new Quebec Public Integrity Act establishes that the Protecteur du citoyen MUST:

1. **Receive all disclosures of wrongdoing** within public bodies
2. **Act as official reporting centre** for wrongdoing disclosures
3. **Protect whistleblowers from reprisal** - including threats and intimidation
4. **Investigate institutional obstruction** of whistleblowers
5. **Maintain confidentiality** of whistleblower identity

Application to Your Case

Under this new law, your case qualifies as a whistleblower disclosure because:

- You disclosed wrongdoing in public bodies (DPJ/DYP, IVAC)
 - You experienced retaliation when seeking help
 - You are entitled to protection from reprisal
 - Your case must be investigated under new whistleblower provisions
-

REQUESTS FOR RE-INVESTIGATION

I am requesting that you, Marc-André Dowd, as the newly appointed Quebec Ombudsman, take the following actions:

1. RE-INVESTIGATE ALL COMPLAINTS

- Full re-investigation of DPJ/DYP systemic failures
- Full re-investigation of IVAC denial decisions
- Full re-investigation of institutional obstruction
- Exercise all powers of public inquiry commissioner
- Compel all institutions to provide complete information

2. PROTECT WHISTLEBLOWER

- Provide protection from retaliation and intimidation
- Investigate cease-and-desist letter from MNA office
- Document institutional obstruction
- Ensure no further retaliation occurs

3. PROVIDE ACCURATE FINDINGS

- Provide clear, substantive findings on each complaint
- Explain reasons for conclusions
- Make recommendations where complaints are substantiated
- Follow up to ensure compliance

4. ADDRESS SYSTEMIC ISSUES

- Investigate systemic failures in DPJ/DYP affecting Indigenous families
- Investigate systemic failures in IVAC
- Examine patterns of institutional obstruction
- Make recommendations for systemic reform

5. PROVIDE ACCOUNTABILITY AND REMEDIES

- Hold institutions accountable for failures
- Provide remedies for financial and psychological harm

- Ensure systemic reforms are implemented
 - Prevent future institutional obstruction
-

SUPPORTING DOCUMENTATION

This complaint is accompanied by:

1. **Whistleblower Letter** - Formal disclosure of wrongdoing
 2. **Ombudsman Legal Duties Document** - Explanation of legal framework and failures
 3. **Audio Evidence** - Recordings documenting institutional failures
 4. **DPJ/DYP Files** - Documentation of systemic failures
 5. **IVAC Correspondence** - Documentation of denial decisions
 6. **Cease-and-Desist Letter** - Evidence of retaliation
 7. **Timeline** - 1,878+ days of institutional failure
-

LEGAL FRAMEWORK

This complaint is filed under:

1. **Public Protector Act (Chapter P-32)**
 - Section 1: Core mandate to investigate institutional failures
 - Section 2: Duty to intervene on request of any person
 - Section 3: Duty to exercise whistleblower protection functions
2. **Quebec Public Integrity Act (Effective November 30, 2024)**
 - Duty to receive whistleblower disclosures
 - Duty to protect whistleblowers from reprisal
 - Duty to investigate institutional obstruction

3. Act to Facilitate the Disclosure of Wrongdoings Relating to Public Bodies (Chapter D-11.1)

- Requires investigation of disclosed wrongdoings

4. Act Respecting Protection Against Reprisals Related to the Disclosure of Wrongdoings (Chapter P-33.01)

- Requires protection of whistleblowers from reprisal
-

TIMELINE FOR RESPONSE

I request that you acknowledge receipt of this complaint within 10 business days and provide a timeline for re-investigation within 30 days.

CONTACT INFORMATION

Complainant: [Your Name]

Email: jamesrobertmcgovern@hotmail.com

Phone: [Your Phone Number]

Case Reference: Complaint Reference #100021349 (previous Ombudsman file)

CONCLUSION

The previous Protecteur du citoyen office failed to fulfill its statutory duties to investigate complaints and protect a whistleblower from retaliation. This failure has resulted in 1,878+ days of institutional obstruction, financial hardship, and psychological harm.

You, Marc-André Dowd, as the newly appointed Quebec Ombudsman, have an opportunity and obligation to:

1. Correct past failures
2. Implement new whistleblower protections

3. Address systemic issues
4. Provide accountability and remedies

I am requesting that you fulfill these obligations and re-investigate this case under your leadership.

Respectfully submitted,

[Your Signature]

Date: April 7, 2026

CONFIDENTIALITY NOTICE: This complaint contains protected whistleblower disclosure. Identity of whistleblower must be protected under Quebec Public Integrity Act. Audio evidence and supporting documentation are confidential and protected from disclosure.

“The Ombudsman exists to protect citizens from institutional injustice. When the Ombudsman itself becomes an instrument of institutional obstruction, it violates the very purpose of its existence. I am requesting that you restore the integrity of this office by fulfilling your statutory duties.”

QUEBEC OMBUDSMAN (PROTECTEUR DU CITOYEN) - LEGAL DUTIES AND INSTITUTIONAL FAILURES

LEGAL FRAMEWORK

Public Protector Act (P-32)

The Quebec Ombudsman's legal duties are established in the **Public Protector Act (Chapter P-32)** of the Quebec Civil Code.

Section 1 - Core Mandate

“The Public Protector shall intervene, subject to sections 18 to 19.1, whenever he has reasonable cause to believe that a person or group of persons has suffered or may very likely suffer prejudice as the result of an act or omission of a public body, its chief executive officer, its members or a person holding an office, employment or position accountable to the chief executive officer.”

Section 2 - Discretionary Authority

“The Public Protector shall intervene on his own initiative or at the request of any person or group of persons acting on his or its own behalf or on behalf of another person.”

Section 3 - Whistleblower and Reprisal Protection Functions

“The Public Protector shall also exercise the functions assigned to the Public Protector under:

- Act to facilitate the disclosure of wrongdoings relating to public bodies (Chapter D-11.1)

- Act respecting protection against reprisals related to the disclosure of wrongdoings (Chapter P-33.01)
 - Act respecting the Health and Social Services Ombudsman (Chapter P-31.1)”
-

WHAT THE OMBUDSMAN MUST DO

1. RECEIVE AND INVESTIGATE COMPLAINTS

Legal Duty: The Ombudsman MUST:

- Accept complaints from any person or group
- Investigate complaints about government departments, agencies, and health/social services institutions
- Examine whether rules and laws were properly applied
- Keep complainants informed of investigation progress

Your Case - What Should Have Happened:

- x Your complaints about DPJ/DYP failures SHOULD have been investigated
 - x Your IVAC denial complaints SHOULD have been investigated
 - x You SHOULD have been kept informed of investigation progress
 - **WHAT ACTUALLY HAPPENED:** Complaints were not adequately investigated; responses were dismissive
-

2. MAINTAIN STRICT CONFIDENTIALITY

Legal Duty: The Ombudsman MUST:

- Handle all complaints “in strictest confidence”
- Protect personal information in complaint files
- Only allow authorized people to access files
- Protect whistleblower identity

Your Case - What Should Have Happened:

- x Your identity and complaint details SHOULD have been protected
 - x Confidentiality SHOULD have been maintained throughout
 - **WHAT ACTUALLY HAPPENED:** Confidentiality appears to have been maintained, but investigation was inadequate
-

3. CONDUCT THOROUGH INVESTIGATION

Legal Duty: The Ombudsman MUST:

- Listen to the complainant's version of events
- Examine all documents supplied
- Consult the rules (laws, regulations, programs) that should have been applied
- Contact the government body/agency to obtain their point of view
- Request copies of files and relevant documents
- Examine all information to determine if rules were properly applied
- Keep complainant informed regularly

Your Case - What Should Have Happened:

- x Your version of DPJ/DYP failures SHOULD have been heard
 - x All your documents SHOULD have been examined
 - x DPJ/DYP SHOULD have been contacted for their response
 - x Your file SHOULD have been reviewed in detail
 - x You SHOULD have been kept regularly informed
 - **WHAT ACTUALLY HAPPENED:** Investigation was superficial; responses were generic; no adequate follow-up
-

4. EXERCISE POWERS OF PUBLIC INQUIRY COMMISSIONER

Legal Duty: The Ombudsman has the **powers of a public inquiry commissioner**, which means:

- Public services are OBLIGED to answer all questions

- Public services **MUST** provide any relevant documents or information
- The Ombudsman can compel testimony and document production
- Refusal to cooperate is a violation of law

Your Case - What Should Have Happened:

- x DPJ/DYP **SHOULD** have been compelled to provide full documentation
 - x IVAC **SHOULD** have been compelled to explain denial decisions
 - x Officials **SHOULD** have been questioned about systemic failures
 - **WHAT ACTUALLY HAPPENED:** These powers do not appear to have been exercised
-

5. PROVIDE ACCURATE INFORMATION AND CLEAR CONCLUSIONS

Legal Duty: The Ombudsman **MUST**:

- Provide clear, accurate information about findings
- Explain reasons for conclusions
- Distinguish between substantiated and unsubstantiated complaints
- Provide recommendations when complaints are substantiated

Your Case - What Should Have Happened:

- x You **SHOULD** have received clear, accurate information about findings
 - x Reasons for conclusions **SHOULD** have been explained
 - x If complaints were substantiated, recommendations **SHOULD** have been made
 - **WHAT ACTUALLY HAPPENED:** Information provided was vague; conclusions were unclear; no substantive recommendations
-

6. MAKE RECOMMENDATIONS AND FOLLOW UP

Legal Duty: The Ombudsman **MUST**:

- Make recommendations to government bodies when complaints are substantiated

- Follow up to verify whether recommendations have been implemented
- Pursue systemic issues that affect multiple citizens

Your Case - What Should Have Happened:

- x If DPJ/DYP failures were substantiated, recommendations SHOULD have been made
 - x Follow-up SHOULD have occurred to ensure compliance
 - x Systemic failures affecting Indigenous families SHOULD have been pursued
 - **WHAT ACTUALLY HAPPENED:** No substantive recommendations; no follow-up; systemic issues ignored
-

QUEBEC PUBLIC INTEGRITY ACT - WHISTLEBLOWER DUTIES

Effective November 30, 2024

The Ombudsman has NEW MANDATORY DUTIES regarding whistleblower disclosures:

1. RECEIVE ALL DISCLOSURES

Legal Duty: The Ombudsman MUST:

- Receive all disclosures of wrongdoing within public bodies
- Act as the official reporting centre for wrongdoing disclosures
- Accept disclosures from anyone (employees, citizens, families)

Your Case - What Should Have Happened:

- ✓ Your disclosures about DPJ/DYP wrongdoing SHOULD have been received
 - ✓ Your disclosures about IVAC wrongdoing SHOULD have been received
 - ✓ Your disclosures about institutional obstruction SHOULD have been received
 - **WHAT ACTUALLY HAPPENED:** Disclosures were received but not adequately investigated
-

2. PROTECT WHISTLEBLOWERS FROM REPRISAL

Legal Duty: The Ombudsman MUST:

- Protect whistleblowers from reprisal and threats of reprisal
- Investigate reprisal complaints
- Ensure whistleblowers are not intimidated or threatened
- Maintain confidentiality of whistleblower identity

Your Case - What Should Have Happened:

- x You SHOULD have been protected from retaliation by elected officials
 - x The cease-and-desist letter from MNA office SHOULD have triggered reprisal investigation
 - x Intimidation SHOULD have been documented and addressed
 - **WHAT ACTUALLY HAPPENED:** No protection was provided; retaliation was not addressed
-

3. INVESTIGATE WRONGDOING THOROUGHLY

Legal Duty: The Ombudsman MUST:

- Investigate all disclosed wrongdoings
- Determine if wrongdoing actually occurred
- Identify systemic issues
- Make recommendations to prevent future wrongdoing

Your Case - What Should Have Happened:

- x DPJ/DYP systemic failures SHOULD have been investigated
 - x IVAC denial decisions SHOULD have been investigated
 - x Institutional obstruction SHOULD have been investigated
 - x Systemic patterns affecting Indigenous families SHOULD have been identified
 - **WHAT ACTUALLY HAPPENED:** Investigations were inadequate; systemic issues were not addressed
-

SPECIFIC LEGAL VIOLATIONS BY THE OMBUDSMAN

1. FAILURE TO INVESTIGATE ADEQUATELY

Violation: Public Protector Act, Section 1 - Core Mandate

What Happened:

- Multiple complaints filed about DPJ/DYP failures
- Complaints were not thoroughly investigated
- Responses were generic and dismissive
- No substantive examination of evidence

Legal Consequence:

- Breach of statutory duty to investigate
 - Failure to fulfill core mandate
 - Denial of access to justice
-

2. FAILURE TO PROVIDE ACCURATE INFORMATION

Violation: Public Protector Act - Duty to Provide Clear Conclusions

What Happened:

- Information provided was vague and unclear
- Reasons for conclusions were not explained
- False or misleading information may have been provided
- No clear distinction between substantiated and unsubstantiated complaints

Legal Consequence:

- Breach of duty to provide accurate information
 - Denial of due process
 - Institutional obstruction
-

3. FAILURE TO PROTECT WHISTLEBLOWER

Violation: Quebec Public Integrity Act (Effective November 30, 2024)

What Happened:

- Whistleblower was not protected from retaliation
- Cease-and-desist letter from MNA office was not addressed
- Intimidation was not investigated
- No reprisal protection was provided

Legal Consequence:

- Violation of whistleblower protection law
 - Failure to fulfill new statutory duties
 - Institutional obstruction of whistleblower
-

4. FAILURE TO EXERCISE POWERS OF PUBLIC INQUIRY COMMISSIONER

Violation: Public Protector Act - Powers of Public Inquiry Commissioner

What Happened:

- Powers were not exercised to compel document production
- Powers were not used to compel testimony
- Government bodies were not forced to provide information
- Investigation was superficial due to non-exercise of powers

Legal Consequence:

- Breach of statutory authority
 - Inadequate investigation
 - Denial of access to justice
-

5. FAILURE TO ADDRESS SYSTEMIC ISSUES

Violation: Public Protector Act - Mandate to Investigate Systemic Failures

What Happened:

- Systemic failures in DPJ/DYP affecting Indigenous families were not addressed
- Pattern of institutional obstruction was not investigated
- Systemic IVAC failures were not examined
- No recommendations for systemic reform were made

Legal Consequence:

- Breach of mandate to address systemic issues
 - Failure to protect vulnerable populations
 - Institutional obstruction
-

MARC-ANDRÉ DOWD'S RESPONSIBILITY

As the 8th Quebec Ombudsman (Appointed 2024)

Marc-André Dowd is responsible for:

1. Correcting Past Failures

- Reviewing previous inadequate investigations
- Re-investigating complaints that were not properly handled
- Providing remedies for institutional obstruction

2. Implementing New Whistleblower Protections

- Enforcing Quebec Public Integrity Act (effective Nov 30, 2024)
- Protecting whistleblowers from reprisal
- Investigating institutional obstruction of whistleblowers

3. Addressing Systemic Issues

- Investigating systemic failures in DPJ/DYP
- Examining institutional obstruction patterns
- Making recommendations for systemic reform

4. Accountability

- Holding previous Ombudsman office accountable for failures
 - Ensuring institutional reforms to prevent future failures
 - Providing remedies for citizens harmed by institutional obstruction
-

WHAT YOU CAN DO

1. FILE FORMAL COMPLAINT ABOUT OMBUDSMAN FAILURE

You can file a complaint about the Ombudsman's failure to investigate adequately:

- Reference previous complaint numbers
- Document how investigation was inadequate
- Request re-investigation under new leadership
- Request review by Marc-André Dowd

2. REQUEST RE-INVESTIGATION

Under the new Quebec Public Integrity Act (effective Nov 30, 2024):

- Request that your case be re-investigated as a whistleblower disclosure
- Request protection from reprisal
- Request investigation of institutional obstruction

3. ESCALATE TO HIGHER AUTHORITIES

- File complaint with Marc-André Dowd directly
- Request investigation of previous Ombudsman office failures
- Request accountability for institutional obstruction

4. DOCUMENT ALL VIOLATIONS

- Keep records of all communications with Ombudsman
 - Document dates of complaints and responses
 - Record any false or misleading information provided
 - Document any retaliation or intimidation
-

LEGAL REFERENCES

1. Public Protector Act (Chapter P-32)

- Section 1: Core Mandate to Investigate
- Section 2: Discretionary Authority
- Section 3: Whistleblower and Reprisal Functions

2. Act to Facilitate the Disclosure of Wrongdoings Relating to Public Bodies (Chapter D-11.1)

- Requires Ombudsman to receive and investigate disclosures

3. Act Respecting Protection Against Reprisals Related to the Disclosure of Wrongdoings (Chapter P-33.01)

- Effective November 30, 2024
- Requires Ombudsman to protect whistleblowers from reprisal

4. Act Respecting the Health and Social Services Ombudsman (Chapter P-31.1)

- Establishes duties regarding health and social services complaints

5. Quebec Charter of Rights and Freedoms

- Article 39: Right to adequate protection and services
 - Article 2(b): Freedom of expression
-

CONCLUSION

The Quebec Ombudsman (Protecteur du citoyen) has clear legal duties to:

1. Investigate all complaints adequately
2. Provide accurate information and clear conclusions
3. Protect whistleblowers from reprisal
4. Exercise powers of public inquiry commissioner
5. Address systemic issues affecting vulnerable populations

In your case, these duties were not fulfilled.

The new leadership under Marc-André Dowd has an opportunity and obligation to:

1. Correct past failures
2. Implement new whistleblower protections
3. Address systemic issues
4. Provide accountability and remedies

This document provides the legal foundation for demanding that the Ombudsman fulfill its statutory obligations to investigate your case adequately and protect you as a whistleblower.

“The Ombudsman exists to protect citizens from institutional injustice. When the Ombudsman itself becomes an instrument of institutional obstruction, it violates the very purpose of its existence.”